

and the subject matter" they are not referring to jurisdiction of the parties in the sense urged by Plaintiff but only in the sense dictated by Bradley v. Fisher, namely that the party is one of a general class of persons over whom the court can exercise jurisdiction. To hold otherwise would defeat the doctrine of judicial immunity because it is the very act of obtaining "jurisdiction of the party" (in the service of process or arrest sense) which often gives rise to suits against judges. What the Courts which have used the "jurisdiction over the party" language are stating is that the party must be someone over whom the judge can exercise jurisdiction within the framework of his Court's jurisdiction of the subject matter, not someone against whom all possible processes must have been issued and served before the Court takes any other action. If a contrary meaning is intended then the cases are simply wrong.

In a similar vein, if Plaintiff's contention is correct, then there could not be any "excess of jurisdiction" with respect to "jurisdiction of the parties". Either all possible process would be required to be issued and served, or there would be no "jurisdiction" necessary to support the doctrine of judicial immunity. This cannot be reconciled with the basic principle stated in Bradley v. Fisher and recognized in